

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SIMONE GRANT,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ERIC FLORES,
P.O. ANGELIKA KAISER and P.O. JOHN DOES 1-3,

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the venue for trial based on the location of the incident: 1672 East 92nd Street, Brooklyn, NY 11236.

Dated: Forest Hills, NY
October 7, 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Jeremy Gorfinkel, Esq.
Attorneys for Plaintiff
SIMONE GRANT
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. ERIC FLORES
9720 Foster Avenue
Brooklyn, NY 11236

P.O. ANGELIKA KAISER
9720 Foster Avenue
Brooklyn, NY 11236

P.O. JOHN DOES 1-3
9720 Foster Avenue
Brooklyn, NY 11236

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SIMONE GRANT,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, P.O. ERIC FLORES,
P.O. ANGELIKA KAISER and P.O. JOHN DOES 1-3,

Defendants.

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Plaintiff, SIMONE GRANT, by her attorneys, the Law Office of Michael Dreishpoon,
P.C., complaining of the Defendants, alleges, upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff, SIMONE GRANT, was and remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times herein mentioned, Defendant, P.O. ERIC FLORES (Tax # 973393), was an employee of the New York City Police Department (hereinafter “the NYPD”).
4. At all times herein mentioned, Defendant, P.O. ANGELIKA KAISER (Tax #945206), was an employee of the NYPD.
5. At all times herein mentioned, Defendants, P.O. JOHN DOES 1-3, were employees of the NYPD.
6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, maintained, managed, supervised, and controlled the NYPD as part of, and in

conjunction with, its municipal functions.

7. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, employed and supervised the above-named officers.
8. The above-named officers are graduates of the NYPD's Police Academy.
9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, the above-named officers, and to conform their conduct to a standard for the protection of individuals such as Plaintiff against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as Plaintiff.
10. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, the above-named officers in the protection of the rights of Plaintiff under the Constitution of the United States of America.
11. Upon information and belief, at all times herein mentioned, the above-named officers were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.
12. At all times hereinafter mentioned, Defendants were acting under the color of state law and their acts constituted "state action."
13. Plaintiff served a Notice of Claim on THE CITY OF NEW YORK on November 27, 2023 and testified at a General Municipal Law § 50-h hearing on September 5, 2024. More than thirty days have elapsed since the claims upon which this

action is based were presented to THE CITY OF NEW YORK, which has neglected and/or refused to make payment or adjustment thereof.

14. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.
15. Plaintiff's damages on each of the following causes of action exceed the jurisdictional limits of New York States's lower courts.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER
42 U.S.C. § 1983 & STATE LAW**

16. On Saturday, September 2, 2023, Plaintiff arrived at her grandmother's house, located at 1672 E. 92nd Street, Brooklyn, NY 11236 at approximately 11:00 A.M. to cook for a party, which started later that day at approximately 5:00 P.M.
17. At approximately 8:45 P.M., several police officers approached the partygoers and told them to move the double-parked vehicles.
18. A few moments later, Plaintiff saw her friend holding her bottle of tequila in his right hand in the driveway of her grandmother's house.
19. Plaintiff reached for the bottle.
20. As Plaintiff reached for the bottle, she saw another arm reach for it too.
21. The arm in question belonged to a female officer, believed to be Defendant, P.O. ANGELIKA KAISER.
22. The bottle fell to ground and shattered.
23. The female officer believed to be P.O. ANGELIKA KAISER then grabbed Plaintiff's left wrist. Additional uniformed officers, designated herein as P.O.

JOHN DOES 1-3, then grabbed Plaintiff's arms, pulled them behind Plaintiff's back, cuffed her, and walked her to one of the police vehicles.

24. Plaintiff was placed in the vehicle and transported to the 69th Precinct.

25. Plaintiff requested an ambulance because one nail had been ripped off.

26. Approximately six hours later, Plaintiff was told that Defendant, P.O.

ANGELIKA KAISER, claimed that Plaintiff had shoved her, which was untrue.

27. Plaintiff was processed, fingerprinted and placed in a jail cell.

28. At some point thereafter, Defendant, P.O. ERIC FLORES, signed a Criminal Complaint falsely accusing Plaintiff of Assault in the Second Degree, Assault in the Third Degree, Attempted Assault in the Third Degree, and Harassment in the Second Degree.

29. Plaintiff was eventually transported to central booking before being arraigned on Monday, September 4, 2023 at approximately 2:30 P.M., and charged with the aforementioned offenses (Docket # CR-032412-23KN).

30. Following her arraignment, after being held in police custody for approximately 42 hours, Plaintiff was released on her own recognizance, and was subsequently required to make approximately ten additional court appearances between September 8, 2023 and September 17, 2024.

31. The Assault in the Second Degree charge was dismissed and sealed on October 3, 2023. The other three charges were disposed via adjournment in contemplation of dismissal on July 18, 2024 and will be dismissed and sealed on January 17, 2025.

32. Plaintiff was wholly innocent of all charges, and THE CITY OF NEW YORK and its police department lacked probable cause or reasonable suspicion to justify

arresting and prosecuting Plaintiff, but proceeded to arrest and prosecute her nonetheless.

33. Defendants' above-mentioned actions were done without probable cause, just cause, reasonable grounds, justification or provocation.
34. By reason of Defendants' foregoing acts, Plaintiff was caused to suffer loss of liberty, loss of earnings, emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.
35. On September 2, 2023, at the aforementioned location, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of having committed any crimes.
36. Defendants, and/or their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, detained, and with full force of arms, laid hold of and compelled Plaintiff to be detained at the 69th Precinct and criminal courthouse.
37. Defendants, their agents, servants, and/or employees, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.
38. By reason of the foregoing false arrest, Plaintiff was subjected to indignity, humiliation, ridicule, loss of liberty, and the violation of Plaintiff's rights under federal and state law.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER
42 U.S.C. § 1983 & STATE LAW**

39. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
40. Plaintiff was wholly innocent of the charges that Defendants alleged she committed, yet was forced to submit to court proceedings.
41. More specifically, Defendants, their agents, servants and/or employees falsely, maliciously, and without probable cause or provocation alleged that Plaintiff committed the crimes of Assault in the Second Degree, Assault in the Third Degree, Attempted Assault in the Third Degree, and Harassment in the Second Degree.
42. Defendants commenced and continued the aforementioned criminal proceeding against Plaintiff, the criminal proceeding terminated in Plaintiff's favor, there was an absence of probable cause for the commencement or continuation of the criminal proceeding, and Defendants acted with actual malice in doing so.
43. By reason of the foregoing malicious prosecution, Plaintiff was subjected to indignity, humiliation, ridicule, loss of liberty, and the violation of Plaintiff's rights under federal and state law.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION
UNDER 42 U.S.C. § 1983 & STATE LAW**

44. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
45. Defendant, THE CITY OF NEW YORK, was negligent in its operation,

management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individually named defendants, as well as the other officers involved.

46. As a result of the above-mentioned negligence, NYPD officers, including P.O. ERIC FLORES, P.O. ANGELIKA KAISER and P.O. JOHN DOES 1-3, falsely imprisoned and maliciously prosecuted Plaintiff.
47. The actions of the individual defendants complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.
48. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, false imprisonment and malicious prosecution.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
October 7, 2024

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Jeremy Gorfinkel, Esq.
Attorneys for Plaintiff
SIMONE GRANT
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

INDIVIDUAL VERIFICATION

I, Simone Grant, hereby affirm this October 4, 2024, under penalties of perjury under New York law, which may include a fine or imprisonment, that the following is true, and I understand that this document will be filed in an action or proceeding in a court of law.

- (1) I am the plaintiff in the within action.
- (2) I have read the foregoing Verified Complaint and know that the contents thereof are true and accurate.
- (3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.


SIMONE GRANT